

**DEPARTMENT THREE
JUDGE BARBARA ZÚÑIGA FOR STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 18, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**JOHN DONNELLY SWEENEY et al. v. SOLANO COUNTY et al.
Case No. CU25-10566**

Plaintiffs' Motion for Change of Venue

TENTATIVE RULING

- A. Defendants' Evidentiary objections/ All Sustained.

- B. Requests for Judicial Notice/Granted.

- C. Motion/Denied.

- 1. Plaintiffs contend they cannot receive a fair trial in this court and have moved for a change of venue pursuant to Code of Civil Procedure section 397, subdivision (b).
- 2. To prevail on such a motion, a party must demonstrate actual prejudice against him to secure a change of venue out of concern for an impartial trial, such as through a widespread feeling of prejudice extending over a long time. (Nyugen v. Superior Court (1996) 49 Cal.App.4th 1781, 1791.) As an aside Defendants are correct.

- Plaintiffs' description of the facts in *Nyugen* is not correct. The case involved Red Light Abatement and not jail conditions.
3. Furthermore, to prevail on a motion for change of venue the law is clear speculation and conjecture do not support a finding prejudice. (*Ross v. Kalin* (1921) 53 Cal. App. 616, 619.)
 4. Plaintiffs have not presented sufficient facts demonstrating actual prejudice to warrant change of venue.
 - a. Their declaration accompanying their initial motion offers only the following facts: that Judge Carringer oversaw the SFRWQCB judgment enforcement proceedings, approved the sale of the Property, and issued an ex parte order canceling Plaintiffs' deed of trust.
 - b. These facts stating adverse judicial decisions do not demonstrate widespread prejudice in Solano County or among the Solano County bench.
 - c. Assuming arguendo, any of Judge Carringer's decisions could be considered biased against Plaintiffs as opposed to simply being adverse rulings, the prejudicial effect of the decisions is fully ameliorated by the fact that Judge Carringer is not presiding over this action and has retired from the bench.
 - d. Plaintiffs' reply brief includes a declaration that Judge Tim P. Kam, formerly assigned to this case, disclosed he spoke with Judge Carringer in chambers and heard from her details of the enforcement action and Plaintiff Sweeney's related arrest and service on Judge Carringer of a restraining order. Again, assuming arguendo, Judge Kam's disclosure could be considered a showing of bias against Plaintiffs, any prejudicial effect of his conversation with Judge Carringer is fully ameliorated by the fact that Judge Kam has recused himself from this case.
 - e. Finally, having sustained all of the Defendants evidentiary objections, the motion fails for lack of evidentiary support.

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